

26STCV05058 26STCV05058

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-09-03

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Case Number: 26STCV05058 Hearing Date: September 3, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 3, 2026

Case Name: West Coast Tow, Inc. v. FCA

US LLC

Case

No.: 26STCV05058

Matter: Motion for Leave to File a First Amended Complaint

Moving

Party: Plaintiff West Coast

Tow Inc.

Responding Party: Defendant FCA US LLC

Tentative Ruling: Plaintiff

West Coast Tow Inc.'s motion for leave is granted.

On

February 17, 2026, Plaintiff West Coast Towing filed this action against

Defendant FCA US, LLC ("Defendant") and Does 1 through 10. The Complaint

alleges two causes of action for: (1) violation of the Song-Beverly Act- breach

of express warranty; and (2) violation of the Song-Beverly Act- breach of

implied warranty. Plaintiff alleges that on June 23, 2021, Plaintiff purchased a 2021 Ram 5500 with vehicle identification number 3C7WRMAL0MG613546.

Plaintiff

moves for leave to file a First Amended Complaint ("FAC"). Defendant opposes.

Legal Standard

The court

may, in furtherance of justice, allow a party to amend any pleading upon any terms as may be proper. (Code Civ. Proc., §§ 473, subd. (a), 576.) Courts liberally grant leave to amend based on a strong policy favoring the resolution of all disputes between parties in the same case. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Thus, requests for leave to amend will generally be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment, and the delay will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; see also *Armenta ex rel. City of Burbank* (2006) 142 Cal.App.4th 636, 642 ["instances justifying the court's denial of leave to amend are rare."].) Absent prejudice, delay alone is insufficient to deny leave to amend. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.)

A party

requesting leave to amend must state what allegations in the previous pleading are proposed to be deleted and added, as well as specify where, by page, paragraph, and line number, the changes are located. (Cal. Rules of Court, rule 3.1324(a)(1)-(3).) The moving party must also attach the proposed amended pleading with a declaration, describing (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. (Cal. Rules of Court, rule 3.1324(b)(1)-(4).)

Analysis

Plaintiff

has complied with the Rules of Court. Plaintiff attached the proposed FAC as Exhibit C. (Shayesteh Decl., Ex. C.)

Plaintiff

seeks leave to add the following three causes of action: (1) breach of express warranty under California Commercial Code section 2313; (2) breach of implied warranty of merchantability Under California Commercial Code section 2314; and (3) breach of implied warranty of fitness for a particular purpose under California Commercial Code section 2315. Plaintiff also seeks leave to amend to include the prayer for relief with proposed causes of action.

Plaintiff

argues that leave to amend is warranted because Plaintiff has claims under the California Commercial Code, which are alternative theories of recovery for the warranty defects. (Shayesteh Decl., ¶ 4.) Additionally, the proposed FAC does not add new parties or require a continuance. (Id. at ¶ 5.) Moreover, the case is at the early stages of discovery so the parties will have a full and fair opportunity to conduct the required discovery. (Id. at ¶ 9.) The Court notes that trial is scheduled for June 26, 2028.

In

opposition, Defendant argues that the Court should deny leave to amend because Plaintiff's proposed causes of action are barred by the statute of limitations and fail to allege sufficient facts. However, the Court finds that these arguments are best resolved in a different hearing. Defendant also argues that it will suffer prejudice because the proposed FAC will expand the scope of litigation. However, Defendant did not provide the Court with any evidence to support its argument.

Thus,

Plaintiff will be permitted to file its FAC.

Conclusion

Plaintiff

West Coast Tow Inc.'s motion for leave to file a First-Amended Complaint is granted.

Plaintiff

must file the FAC within five (5) calendar days of this ruling.